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File No.: EXP202404802

RESOLUTION OF TERMINATION OF THE PROCEDURE FOR RECOGNITION OF RESPONSIBILITY AND VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On January 29, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the PUBLIC ADMINISTRATION UNION OF CGT IN JEREZ AND NORTHWEST CÁDIZ (hereinafter, the UNION), through the agreement that is transcribed:

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File No.: EXP202404802

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On April 14, 2023, a complaint form was submitted for non-compliance with the requirements of active publicity (Article 23 of Law 1/2014, of June 24, on Public Transparency of Andalusia) to the Council of Transparency and Data Protection of Andalusia against the UNION CGT OF ***CENTER A.A.A.

Along with the aforementioned form, a document was submitted stating that:

- "On March 24, 2023, the delegates of the CGT union met with (...) to carry out an EXTRA-STATUTORY AGREEMENT (...). On March 28, 2023, the unions held an assembly with the staff of ***CENTER A.A.A., to accept or not the agreement they had reached with the Company. The sheet presented to the staff stated in the heading:

ASSEMBLY CONVENED BY (...) AND C.G.T. TO VOTE ON COLLECTIVE AGREEMENT

NAME AND SURNAME

VOTE

SIGNATURE

ID

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From there, the workers began signing and adding their personal data below where it corresponded. WE REPORT that the sheet where we signed did NOT CONTAIN ANY STATEMENT ABOUT THE DATA PROTECTION LAW WHERE THE SIGNING STAFF AUTHORIZED THAT THEIR PERSONAL DATA BE VISIBLE TO ALL THE WORKERS WHO WERE SIGNING."

- "On the other hand, a worker wanted to sign the document left at the reception and went there, when she arrived the document to sign was not there, following instructions another worker had taken it to her private home with all the data of the workers who had already signed up to that moment.

EVIDENCE No. 2, CONVERSATION VIA WHATSAPP IN THE STAFF GROUP WHERE IT IS STATED THAT IT WAS TAKEN TO HER PRIVATE HOME WHICH WE CANNOT PRINT DUE TO DATA PROTECTION BUT IS AT YOUR ENTIRE DISPOSAL FOR VERIFICATION BY THE RELEVANT AUTHORITY." (sic)

- "Additionally, on April 5, 2023, the CGT union stated that a total of (...) people exposed their personal data in said document, which was subsequently REGISTERED with the Company Administration. On April 13, 2023, a COLLECTIVE AGREEMENT MEETING was held (...) where (...) stated... that the PROPOSAL... is supported by the signature of (...) workers, which is the DOCUMENT REFERRED TO IN THIS COMPLAINT."

Along with the document, EVIDENCE No. 1 is provided, an image of a sheet with the heading

"ASSEMBLY CONVENED BY (...) AND C.G.T. TO VOTE ON COLLECTIVE AGREEMENT" and the following columns: "NAME AND SURNAME", "VOTE", "SIGNATURE" and "ID". Below it can be seen that 7 people signed and completed their personal data, only that these have been anonymized by the complainant. This sheet does not contain information regarding the processing of personal data. Along with the document, EVIDENCE No. 3 is provided, a printout of an email sent by (...) from ***CENTER A.A.A. to 20 recipients (whose email addresses were covered with a marker) with the following content: "Attached is the call for the Collective Agreement meeting next Thursday at 12:30 along with our proposal based on that supported by the staff (...)."

On May 3, 2023, the Director of the Council of Transparency and Data Protection of Andalusia made the decision to forward the aforementioned complaint to the Spanish Agency for Data Protection, since from the documentation provided it is

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It is clear that the knowledge of the issue presented does not fall under the Council's jurisdiction, given that the scope of its competence, established in the Statute of Autonomy for Andalusia, in Law 1/2014, of June 24, on Public Transparency of Andalusia, and in Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights, is fundamentally restricted to the public sector of Andalusia, while the subject of the complaint refers to legal entities external to the mentioned scope.

On May 4, 2023, this Agency received the aforementioned issue.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on June 15, 2023, the said complaint was forwarded to the CONFEDERACIÓN GENERAL DEL TRABAJO with NIF G79196614, for it to proceed with its analysis and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

On July 6, 2023, the CONFEDERACIÓN GENERAL DEL TRABAJO responded that:

"The Confederación General del Trabajo is, as its name indicates, a confederation of unions, in accordance with what is stated in Article 2.2.b. Among many other union organizations, it is associated with the Confederación General del Trabajo of Andalusia, Ceuta, and Melilla, which in turn has deposited its Statutes, which are also attached, granting it its own legal personality and full capacity to act, as established by the aforementioned regulations. Its CIF is G 41414640, different from that of the Confederación General del Trabajo, and its address, also different, is located at Calle Alcalde Isacio Contreras nº 28, local 8, Sevilla. (...)

The facts subject to the complaint in question occurred within the territorial scope of the Confederación General del Trabajo of Andalusia, Ceuta, and Melilla, therefore, in this case, that union organization is the one to which this Agency must address for the corresponding effects."

On July 14, 2023, this Agency forwarded the aforementioned complaint to the CONFEDERACIÓN GENERAL DEL TRABAJO DE ANDALUCÍA with NIF G41414640.

On August 4, 2023, the CONFEDERACIÓN GENERAL DEL TRABAJO DE ANDALUCÍA responded that:

"The Confederación General del Trabajo is, as its name indicates, a confederation of unions, in accordance with what is stated in Article 3 and Article 9. Among many other union organizations, it is associated with the Public Administration Union of the Confederación General del Trabajo in Jerez and Costa Noroeste de Cádiz, which in turn has deposited its statutes, which are also attached, granting it its own legal personality and full capacity to act, as established by the aforementioned regulations. Its CIF is G10912608, different from that of the Confederación General del Trabajo of Andalusia, Ceuta, and Melilla, and its address is Pza. del Arenal, 20-22, 1st floor, 11403 – Jerez de la Frontera (Cádiz). (...)

The facts subject to the complaint occurred within the scope of the Public Administration Union of the

Confederación General del Trabajo in Jerez and Costa Noroeste de Cádiz, therefore, in this case, that union organization is the one to which this Agency must address for the corresponding effects.”

THIRD: On August 4, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VIII of the LOPDGDD.

On October 23, 2023, the PUBLIC ADMINISTRATION UNION OF THE CONFEDERACIÓN GENERAL DEL TRABAJO IN JEREZ AND COSTA NOROESTE DE CÁDIZ (hereinafter, the UNION) submitted a written response to the information request from this Agency, in which it stated:

- “The Confederación General del Trabajo is a ‘non-centralized’ entity... It does not have a single CIF. (...) The Confederación del Trabajo of Andalusia, Ceuta, and Melilla (hereinafter CGT-A), does not have individual members, but its main role is to provide various services to the unions that comprise it. (...)

...most of the unions that make up the CGT-A are very small and have limited resources, the Public Administration Union of the CGT in Jerez de la Frontera and Costa Noroeste de Cádiz (hereinafter the Union) currently has (...) members and at ***CENTRO.A.A.A., it only has (...) (a certificate from the Union's secretary is attached as Docum. No. 13). The individuals who perform union work in these unions... Put their best effort into what they do, and we can attest to this, considering the concern of these (...) from ***CENTRO A.A.A. due to human error...”

- “On October 2, 2018 (...) a Data Protection Delegate was appointed, attached as Docum. No. 1.”

- “The complaint arises within a labor conflict at ***CENTRO A.A.A. and is filed by (...).

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This environment of labor conflict is caused by the negotiation of a new collective agreement, a negotiation opposed by ***SINDICATO.1. This negotiation concluded with the approval of a new extra-statutory collective agreement with the consent of the majority of the workers and the company. And with the support of ***SINDICATO.2 and CGT and the opposition of ***SINDICATO.1.

To consult the opinion of the workers and prior to the final approval, a workers' assembly was held, convened by the delegates belonging to ***SINDICATO.2 and CGT. (...)

In this context of CONFLICT THAT HAS NOTHING TO DO WITH DATA PROTECTION is where the complaint arises (...)

-

“Firstly, attempting to instrumentalize data protection as a ‘tantrum’. (...)

We recall the criterion maintained by the National Court in its Judgment of April 1, 2011 (appeal 222/2010), regarding a conflict within a community of property owners (where data protection is often used as a ‘throwing weapon’), which stated: ‘The importance and significance of data protection regulations and the relevance of the constitutional rights at stake advise that they should not be put at the service of personal grievances that must be resolved in different realms that should only have relevance in the domestic sphere that is its own and not in a jurisdictional realm. The seriousness that accompanies the exercise of the sanctioning power advises that the corresponding administrative and jurisdictional mechanisms should only be activated when it is assumed that a true violation of the fundamental right to data protection has occurred.’

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“Secondly, the complainant is not an affected party; of course, they neither participated nor included their data in any document. The affected parties, the workers of the Foundation, have neither claimed nor reported as of the date of notification of this information request (10/16/23). And this is so because none have understood that there was any risk to their fundamental right to data protection and because all of them knew who and for what purpose those data were being requested. On the other hand, we do not know how one of the signature sheets was obtained, who provided those data (since it is not indicated), and under what circumstances. Although from the account of one of our affiliates, it seems to be a circumstance provoked by the labor conflict.”

-

"PRELIMINARY MEASURES TO THE COMPLAINT. -

(...) We will demonstrate that there are procedures and processes to prevent what occurred and that measures have been taken to ensure it does not happen again, but that in the context we refer to (private interests and very small unions with few resources), human error is a possible occurrence.

• CONTENT AND DOCUMENTATION

The union has different data protection policies that aim to facilitate and assist in compliance with the regulations:

1st.- (...).

2nd.- (...).

3rd.- (...).

4th.- (...).

5th.- (...).

6th.- (...).

7th.- (...).

8th.- (...).

These policies have been the result of different risk assessments, which continue to be carried out, both to adjust them if necessary and to verify their level of understanding.

These assessments are conducted both in-person and online.

The risk assessments are as follows:

1st.- (...).

2nd.- (...).

3rd.- (...).

4th.- (...).

5th.- (...).

6th.- (...).

7th.- (...).

Periodic reminders, news, and tests are sent out regarding all policies and assessments to verify compliance.

We attach two examples of emails from this year: 10/17/23 and 03/22/23. They refer to the policy on rights and breaches, as Document No. 2.

And two other emails regarding the risk assessment on the management, destruction, and archiving of paper documentation (02/02/23) and regarding the risk assessment in the workplace (04/24/23). They are attached as Document No. 3.

• TRAINING AND AWARENESS

(...)

The Permanent Secretariat of the Union and the majority of the affiliates receive the following monthly emails:

- (...).

- (...).

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- (...).

(...) Along with the above, the Permanent Secretariat of the union and its affiliates have permanent access to online training at no cost to them. A new call for applications is opened each semester (the latest call is attached as Docum. Num. 6), offering courses in text, video, and audio (...).

And finally, in-person training sessions are also conducted (...). This year they have been held in:

- January 2023

- May 2023

(...)"

-

“MEASURES TAKEN AFTER KNOWLEDGE OF THE INCIDENT (BEFORE KNOWLEDGE OF THE COMPLAINT) AND SUBSEQUENTLY.

After a member of the CGT works council became aware of the complaint filed (...) she contacted the Union to ask for guidance on how to proceed in this situation... regarding the reasons for the complaint, I transcribe literally what she states...:

“Regarding the worker taking the signatures home: completely false, no one knew where we left the documents when we were not on duty (...) Coinciding with Holy Week and to facilitate the signatures of the staff, 2 reception colleagues offered to safeguard and provide the document to the people who would work those days.

One of them worked Saturday and Sunday morning shifts; I handed her a new blank document only with the template we had created, placed in an opaque yellow folder, and I warned her to be careful, that when she finished her shift, she should put the document in her locker, which is personal and no one has access to, locked.

The documents have always been safeguarded by CGT and ***SINDICATO.2, and these two reception colleagues who offered to safeguard and facilitate the work were given a new blank document (...).

A worker currently a member of the Committee for ***SINDICATO.1 asked the second reception colleague who was safeguarding it for the signature paper to sign, took out her mobile phone, and took a photo; the reception colleague reprimanded her...”

After reading the account of the events, we were and are clear that (...) Also, there was a concern about the custody of the documents and that no one took any list home (something for which, by the way, no evidence is provided).

It is true that although all workers knew the unions that were calling for and requesting the signature, which is why no worker has made a complaint or report in this regard, the clause was not included in the document due to human error.

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The human error, the involuntary mistake, the isolated and specific error by some individuals (in our case only (...)) who were under significant pressure and stress in that context. Balancing their work with the exercise of union duties for all their colleagues should not lead to the initiation of a sanctioning procedure. Especially when that specific error has not caused any harm to those affected.

That does not mean that measures should not be taken (which have already been taken and will continue to be taken), that processes and procedures should not be improved, but we cannot sanction human error with these connotations; otherwise, we would fall into objective liability.

After the Union became aware of what happened, the established protocols were activated, and an urgent meeting was convened for this purpose.

This meeting was held on July 11. Present at the meeting were: the Data Protection Delegate, members of the Permanent Secretariat of the union, a representative of CGT-A, and the two representatives of the CGT workers from ***CENTRO A.A.A.. The following points were discussed:

- 1.- Analysis of what occurred and measures to be taken to improve the transparency and custody of documents in the future.
- 2.- Training and review on the content of the informative clauses, as well as the policy for managing, destroying, and archiving paper documentation and the exercise of rights and breaches.

After analyzing both points, it was decided as a first measure to insert a document with the extended clause of the Union on the CGT bulletin board within ***CENTRO A.A.A. so that all workers can always have all the information from the Union at their disposal. The photograph is attached.

Informative clause that includes the following data:

- Responsible

- Contact details of the Data Protection Delegate
- Purpose
- Legal Basis
- Retention period
- Recipients
- Rights
- Possibility of complaint, indicating that there is a Data Protection Delegate who can mediate in case of conflict and their details. In addition to the possibility of contacting the Spanish Agency for Data Protection in any case.
- Duty of confidentiality
- Possibility of obtaining additional information.

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This same information is sent as a circular to all staff, through a distribution list provided by the Foundation. An image is attached.

Following this, a review of the policy on the exercise of rights and security breaches is conducted, as well as that of management, destruction, and archiving of paper documentation. The doubts raised by both are resolved, and informational documents are signed regarding this matter.

(...) A sample of each of the signed documents is attached. Docum. No. 7 and 8.

3.- A specific training plan is developed to prevent this from happening again and is already being implemented. A couple of examples are attached, Docum. No. 9 and 10.

4.- The risk assessment known as: "Periodic Assessment of Compliance with Data Protection" is conducted in person. This assessment consists of 27 questions, many of which are closely related to the reported facts.

(...) A model of this is attached, as Docum. No. 11. (...)

5.- Finally, we review the Register of Processing Activities and update it. Docum. No. 12.

6.- We agree to hold another in-person meeting within a maximum period of 6 months to evaluate all actions taken and plan new ones."

A copy of an email dated October 17, 2023, sent from dpo@cgtandalucia.org to listadpo@cgtandalucia.org with the subject "CGT- TEST RIGHTS AND SECURITY BREACHES" and the following content is provided:

"(...)"

A copy of an email dated March 22, 2023, sent from dpo@cgtandalucia.org to listadpo@cgtandalucia.org with the subject "TEST DATA PROTECTION RIGHTS AND SECURITY BREACHES (IMPORTANT)" and the following content is provided:

"(...)"

a) (...)

b) (...)

c) (...)

(...)."

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A copy of an email dated February 10, 2023, sent from dpo@cgtandalucia.org with the subject "RISK ASSESSMENT.- Regarding the destruction and archiving of paper documentation" and the following content is provided: "(...)".

A copy of an email dated March 30, 2023, sent from dpo@cgtandalucia.org with the subject "AND

WHO ARE YOU? NOT INCLUDING A CLAUSE IS A 5,000 EURO FINE" and the following content is provided:

"(...)"

A document titled "INFORMATION DOCUMENT ON THE EXERCISE OF RIGHTS AND SECURITY BREACHES" from the union "PUBLIC ADMINISTRATION UNION OF CGT IN JEREZ DE LA FRONTERA AND NORTHWEST COAST," position "UNION SECTION (...)" dated July 11, 2023, is provided. This document indicates the timeframe in which security breaches must be reported, explains the types of breaches, and assesses the scope of the security breach, but does not provide specific guidance on measures to prevent these breaches from occurring.

A document from the PUBLIC ADMINISTRATION UNION OF CGT IN JEREZ DE LA FRONTERA AND NORTHWEST COAST, titled "INFORMATION ON THE MANAGEMENT, DESTRUCTION, AND ARCHIVING OF PAPER DOCUMENTATION," dated July 3, 2023, is provided, which states, among other information:

"(...) 5. While documentation containing personal data is not archived, either because it is under review or processing, whether prior to or after its archiving, the person in charge of it must safeguard it and prevent it from being accessed by unauthorized persons at all times.

6. Cabinets, file cabinets, or other elements in which documents containing personal data are stored must be located in areas where access is protected by access doors equipped with key-operated or equivalent opening systems. These areas must remain locked when access to the documents is not necessary. If, given the characteristics of the premises available to the person in charge, it is not possible to comply with the provisions of the previous point, the person in charge will adopt alternative measures, which must be justified, such as the installation of video cameras.

(...)

13. Clean desks. Each user, whenever they leave their workstation or when they finish their workday, must remove all documents containing personal or confidential data and store them securely. (...)"

A certificate from the Secretary of Administration and Finance of the Inter-Comarcal Public Administration Union of Jerez and Northwest Coast of Cádiz of the General Confederation of Labor (CGT), dated October 20, 2023, is provided, certifying that the total number of members of this union was (...), of which X workers belonged to ***CENTER A.A.A..

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringements committed, a sanctioning procedure is initiated.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon expiration of this period, it shall lapse, and consequently, the proceedings shall be

archived, in accordance with the provisions of Article 64 of the LOPDGDD.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

III

Preliminary Issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since the UNION carried out, among other processes, the collection and retention of personal data of individuals: name and surname and national identity document number (DNI).

The UNION carried out this activity in its capacity as data controller, as it was the entity that determined the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

IV

Obligation Breached. Integrity and Confidentiality

Letter f) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality')."

In this case, there is a captured image of a form with the heading "ASSEMBLY CONVENED BY (...) AND C.G.T. TO VOTE ON COLLECTIVE AGREEMENT" and the following columns: "NAME AND SURNAME," "VOTE," "SIGNATURE," and "DNI." Below, it can be seen that 7 people signed and completed their personal data, although this information has been anonymized by the complainant. In its letter dated October 23, 2023, the UNION indicated that a member of the CGT works council stated:

"Coinciding with Holy Week and to facilitate staff signatures, 2 reception colleagues offered to safeguard and provide the document to the people who would work those days.

One of them worked Saturday and Sunday in the morning shift; I handed her a new blank document with only the template we had created, placed in an opaque yellow folder, and I warned her to be careful, that when she finished her shift, she should put the document in her locker, which is personal and no one has access to, under lock.

The documents have always been safeguarded by CGT and ***UNION.2 and these two reception colleagues who offered to safeguard and facilitate the work were left with a new blank document (...). A worker currently a member of the Committee for ***UNION.1 asked the second reception colleague who was safeguarding it for the signature paper to sign, took out her mobile phone, and took a photo; the receptionist reprimanded her..."

This means that the confidentiality of the personal data of those who had signed the aforementioned form was compromised as the UNION did not take the appropriate measures to ensure the security of such data to prevent the forms from escaping the scope of the UNION, since it had been provided to the reception workers, which led to the image being captured.

Therefore, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, it is considered that the facts

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known could constitute an infringement attributable to the UNION, for violation of the previously transcribed article.

V

Qualification of the infringement of Article 5.1.f) of the GDPR and qualification for the purposes of

prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following articles, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the sole purposes of the prescription period, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VI

Proposal for sanction for the infringement of Article 5.1.f) of the GDPR

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

For its part, Article 76 "Sanctions and corrective measures" of the LOPDGDD provides:

"1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may

also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject."

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In the present case, considering the seriousness of the possible infringement, particularly with regard to the consequences that its commission causes to those affected, the imposition of a fine would be appropriate.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 5.1.f) of the GDPR, allows for an initial administrative fine of 1,000.00 euros.

VII

Unfulfilled Obligation. Information to be provided when personal data is obtained from the data subject Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide all the information indicated below at the time of obtaining such data:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time when the personal data are obtained, the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data relating to the data

subject, and their rectification or erasure, or the restriction of their processing, or to object to the processing, as well as the right to data portability;

c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;

d) the right to lodge a complaint with a supervisory authority;

e) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;

f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the controller intends to further process personal data for a purpose other than that for which they were collected, it shall provide the data subject prior to that further processing with information on that other purpose and any pertinent additional information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

In the present case, the UNION made available to the workers of the ***CENTER A.A.A. a form to collect signatures in which the following personal data were requested: names and surnames, signature, and ID number, without providing the data subjects with any information regarding the aforementioned processing.

This form was signed by a total of (...) persons, to whom no information of any kind required under Article 13 of the GDPR was provided.

In its letter of October 23, 2023, the UNION admitted that this was due to human error:

"The individuals who provide union labor in these unions... Make their best effort in what they do, and we can attest to this, considering the concern of these (...) from ***CENTER A.A.A. due to a human error..."

And that:

"We will demonstrate that there are procedures and processes in place to prevent what occurred and that measures have been taken to ensure it does not happen again, but that in the context we refer to (particular interests and very small unions with few resources), human error is a possibility."

Therefore, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, it is considered that the facts...

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could constitute an infringement attributable to the UNION, for violation of the previously transcribed article.

VIII

Qualification of the infringement of Article 13 of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following articles, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"(...)

b) the rights of the data subjects under Articles 12 to 22; (...)"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the sole purpose of the statute of limitations, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe after three years, particularly the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law.”

IX

Proposal for sanction for the infringement of Article 13 of the GDPR

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

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a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected data subjects and the level of damage and harm they have suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

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In the present case, considering the seriousness of the possible infringement, particularly the consequences that its commission causes to those affected, the imposition of a fine would be appropriate.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 13 of the GDPR, allows for the initial setting of an administrative fine of 1,000.00 euros.

X

Corrective Measures

If the infringement is confirmed, the resolution issued may establish the corrective measures that the infringing entity must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Article 5.1.f) of the GDPR and Article 13 of the GDPR, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, under which each supervisory authority may “order the controller or processor to ensure that the processing operations are in compliance with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...”

Thus, the responsible entity may be required to adjust its actions to comply with personal data protection regulations, to the extent expressed in the previous Legal Grounds.

In this act, the alleged infringement committed and the facts that could lead to this possible violation of data protection regulations are established, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, the resolution adopted may require the UNION to adopt the following measures within a period of THREE MONTHS, starting from the date of effectiveness of the resolution concluding this procedure:

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- Demonstrate the effective application of appropriate technical and organizational measures, not only to comply with the regulations but also to demonstrate compliance to the supervisory authorities and interested parties.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in

the resolution of the present sanctioning procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, and such conduct may lead to the opening of a further administrative sanctioning procedure.

Furthermore, it is reminded that neither the acknowledgment of the infringement committed nor, where applicable, the voluntary payment of the proposed amounts, exempts the obligation to adopt the necessary measures to cease the conduct or to correct the effects of the infringement committed and to demonstrate compliance with this obligation before this AEPD.

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the UNION OF THE PUBLIC ADMINISTRATION OF CGT IN JEREZ AND NORTHWEST COAST OF CÁDIZ, with NIF G10912608, for the alleged infringement of Article 5.1.f) of the GDPR and Article 13 of the GDPR, classified in Article 83.5 of the GDPR.

SECOND: TO APPOINT B.B.B. as instructor and C.C.C. as secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond, without prejudice to what results from the instruction, would be:

- For the alleged infringement of Article 5.1.f) of the GDPR, administrative fine of: 1,000.00 euros.
- For the alleged infringement of Article 13 of the GDPR, administrative fine of: 1,000.00 euros.

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FIFTH: NOTIFY this agreement to the PUBLIC ADMINISTRATION UNION OF CGT IN JEREZ AND NORTHWEST COAST OF CÁDIZ, with NIF G10912608, granting it a hearing period of ten working days to formulate allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number indicated in the heading of this document.

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for formulating allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 1,600.00 euros, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 1,600.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to apply, the amount of the sanction would be set at 1,200.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or administrative appeal against the sanction.

For these purposes, in case of opting for any of them, it must send to the General Subdirectorate of Data Inspection an express communication of the withdrawal or renunciation of any action or

administrative appeal against the sanction indicating which of the two reductions it is opting for or if it is for both.

In the event that it chooses to proceed with the voluntary payment of any of the amounts indicated above (1,600.00 euros or 1,200.00 euros), it must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is opting.

Likewise, it must send the proof of payment to the General Subdirectorate of Inspection along with the express communication of the withdrawal or renunciation of any action or administrative appeal against the sanction to continue with the procedure in accordance with the amount deposited.

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Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

1479-111224

Olga Pérez Sanjuán

The General Subdirector of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency.

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SECOND: On February 14, 2025, the UNION proceeded to pay the sanction in the amount of 1,200.00 euros making use of the two reductions provided for in the initiation agreement transcribed above, which implies the acknowledgment of responsibility regarding the facts referred to in the initiation agreement and its legal qualification.

THIRD: The UNION has expressly renounced any action or administrative appeal against the sanction.

FOURTH: In the initiation agreement transcribed above, it was indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the initiation agreement is warranted.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions...".

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in Regulation (EU) 2016/679, in this organic law, by the regulatory provisions issued in its development

and, as far as they do not contradict them, subsidiarily, by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

- "1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when a pecuniary sanction can be imposed alongside a non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the alleged responsible party at any time prior to the resolution will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned on the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

III

Voluntary payment and acknowledgment of responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making voluntary payment of the proposed sanction, which would entail two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be set at 1,200.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

After the notification of the aforementioned initiation agreement, the UNION has proceeded to acknowledge responsibility and make voluntary payment of the sanction, availing itself of the two reductions provided and expressly waiving any action or administrative appeal.

It should be noted that, in accordance with the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their form of initiation. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any others arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts results in a total amount of 2,000.00 euros.

After the UNION OF THE PUBLIC ADMINISTRATION OF CGT IN JEREZ AND NORTHWEST COAST OF CADIZ has made prompt payment and acknowledged responsibility, it is proceeded, by virtue of Article 85 of the LPACAP, to reduce the total mentioned by 40%, which results in the final amount of 1,200.00 euros.

SECOND: TO DECLARE the termination of procedure EXP202404802, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO ORDER the UNION OF THE PUBLIC ADMINISTRATION OF CGT IN JEREZ AND NORTHWEST COAST OF CADIZ to notify the Agency within 3 months from the date this resolution becomes firm and executive, of the adoption of the measures described in the legal grounds of the

initiation agreement transcribed in this resolution.

FOURTH: TO NOTIFY this resolution to the UNION OF THE PUBLIC ADMINISTRATION OF CGT IN JEREZ AND NORTHWEST COAST OF CADIZ.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility to the withdrawal or renunciation of any action or administrative appeal, the present authority accepts the express waiver stated by the UNION OF THE PUBLIC ADMINISTRATION OF CGT IN JEREZ AND NORTHWEST COAST OF CADIZ, consequently precluding the filing of an optional appeal for reconsideration against this resolution, all without prejudice to the possibility of resorting to the contentious-administrative jurisdiction.

Consequently, considering the provisions of Article 90 of the LPACAP, since there is no administrative appeal available due to the express waiver, this resolution will be firm and fully executive from the date of its notification.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the firm resolution may be provisionally suspended in the administrative route if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case...

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In this case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through one of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the precautionary suspension to be concluded.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

1259-180225

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

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